

UPSC INDIAN POLITY

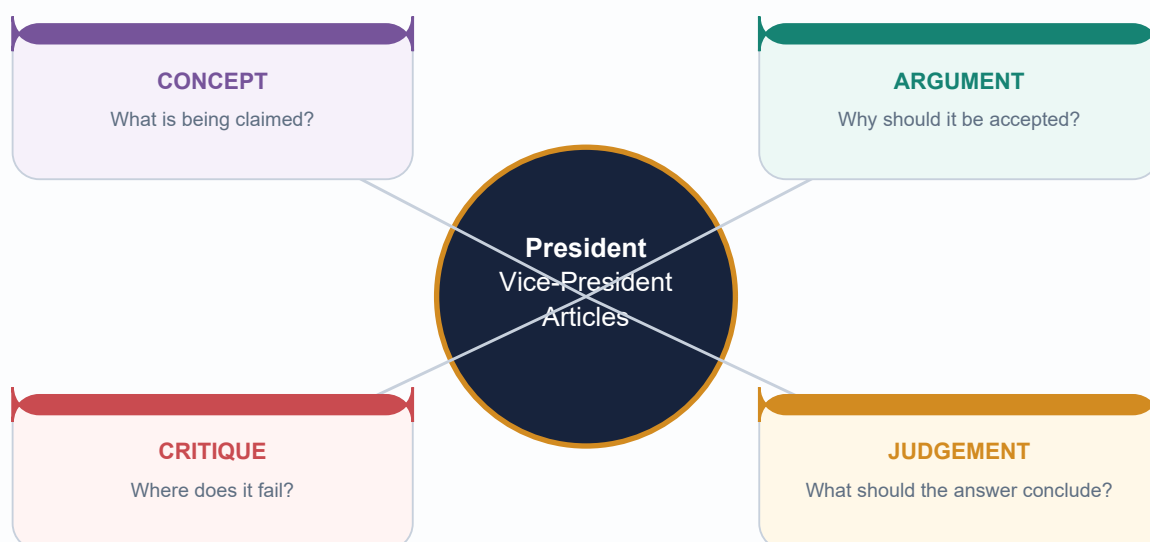
President & Vice-President (Articles 52–73) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: President-and-Vice-President.md + 15_President-and-Vice-President.md

Learning cards: 29



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS Paper:** GS-II

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than Subject: Polity · Tier: Basic (foundation) · GS
Paper: GS-II

Dimension 2

greater than Grounded in: Laxmikant Ch. 17–18. □ = from
book · □□ = case law · □ = current affairs.

Dimension 3

greater than Full depth:
advanced/15President-and-Vice-President.md.

STATIC THEORY

- greater than **Grounded in:** Laxmikant Ch. 17–18. □ = from book · □□ = case law · □ = current affairs.
- greater than *Full depth:* advanced/15_President-and-Vice-President.md.

MUST-KNOW FACTS

1. greater than **Grounded in:** Laxmikant Ch. 17–18. □ = from book · □□ = case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Core
Foundation

HIGH

Foundation • Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	President	Vice-President
□ Articles	52–62, 72	63–71
□ Electoral college	Elected MPs + elected MLAs (+Delhi/Puducherry)	MPs only (elected + nominated)
□ Age	35	35
□ Qualified for	Lok Sabha	Rajya Sabha
□ Removal	Impeachment (Art 61)	RS effective-majority resolution + LS
□ Term	5 years, any no. of re-elections	5 years

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · President — core idea

GS-II Indian
Polity

INTRO & ORIGIN

□ **Nominal executive** (Ambedkar: "head of the State, not of the Executive"). Elected by **PR-STV, secret ballot**; MLA vote value uses **1971 census** (84th Amdt). □ **42nd Amdt** made CoM advice **binding**; **44th Amdt** lets him **return once**, then it's binding.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Nominal executive (Ambedkar: "head of the State, not of the Executive"). Elected by **PR-STV, secret ballot**; MLA vote value uses **1971 census** (84th Amdt). **42nd Amdt** made CoM advice **binding**; **44th Amdt** lets him **return once**, then it's binding.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → President —
core idea

HIGH

Foundation · Impeachment (Art 61)

GS-II Indian
Polity

INTRO & ORIGIN

greater than □ Only ground = "**violation of the Constitution.**" Charge by **1/4 members**, passed by ****2/3** of

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than total membership of BOTH Houses. Nominated MPs can join impeachment** (but not the election).

MEMORY HOOK

greater than Only ground = "**violation of the Constitution.**" Charge by **1/4 members**, passed by ****2/3** of

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Impeachment
(Art 61)

HIGH**Foundation · Powers — 7 heads**GS-II Indian
Polity**INTRO & ORIGIN**

greater than ☐ **Mnemonic: "E-L-F-J-D-M-E" = Executive · Legislative · Financial · Judicial ·**

Foundation learning layer: concepts → constitutional detail → UPSC application.

POWERS — 7 HEADS: RECALL MAP**Powers — 7 heads**

Dimension 1 greater than ☐ Mnemonic: "E-L-F-J-D-M-E" = Executive · Legislative · Financial · Judicial ·	Dimension 2 greater than Diplomatic · Military · Emergency. Nominates 12 Rajya Sabha members; Supreme
Dimension 3 greater than Commander of armed forces.	

STATIC THEORY

- greater than Diplomatic · Military · Emergency. Nominates **12 Rajya Sabha** members; **Supreme
- greater than Commander** of armed forces.

MEMORY HOOK

greater than Mnemonic: "E-L-F-J-D-M-E" = Executive · Legislative · Financial · Judicial ·

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Powers — 7
heads

HIGH**Foundation · Veto (Art 111)**GS-II Indian
Polity**INTRO & ORIGIN**

☐ President has **Absolute, Suspensive, Pocket** vetoes — **NO qualified veto** (that's the US President). ☐ **Pocket veto example: Zail Singh — Indian Post Office Bill (1986).** ☐ **Must assent** to a constitutional amendment bill (24th Amdt).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. President has **Absolute, Suspensive, Pocket** vetoes — **NO qualified veto** (that's the US President). **Pocket veto example: Zail Singh — Indian Post Office Bill (1986). Must assent** to a constitutional amendment bill (24th Amdt).

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Veto (Art 111)

HIGH**Foundation · Ordinance (Art 123) & Pardon (Art 72)**GS-II Indian
Polity**INTRO & ORIGIN**

□ Ordinance only when a House is **not in session**; lapses **6 weeks** after reassembly; **can't amend Constitution**. □ Only the **President** (not Governor) can pardon a **death sentence** or a **court-martial** sentence.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Ordinance only when a House is **not in session**; lapses **6 weeks** after reassembly; **can't amend Constitution**. Only the **President** (not Governor) can pardon a **death sentence** or a **court-martial** sentence.

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Ordinance (Art 123) & Pardon (Art 72)

HIGH**Foundation · Vice-President**GS-II Indian
Polity**INTRO & ORIGIN**

□ **Ex-officio Chairman of Rajya Sabha**; acts as **President for max 6 months** on a vacancy. □ Unlike the **US VP**, does **not** take over for the full unexpired term. Removal resolution starts **only in Rajya Sabha**; **no ground needed**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Ex-officio Chairman of Rajya Sabha**; acts as **President for max 6 months** on a vacancy. Unlike the **US VP**, does **not** take over for the full unexpired term. Removal resolution starts **only in Rajya Sabha**; **no ground needed**.

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Vice-President

HIGH

Foundation • Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- President's oath → by **CJI**; VP's oath → by **President**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1

- President's oath → by CJI; VP's oath → by President.

Dimension 2

- Only Dr. Rajendra Prasad served two full presidential terms.

Dimension 3

- D.C. Wadhwa (1987): re-promulgating ordinances = "fraud on the Constitution."

STATIC THEORY

- □ Only **Dr. Rajendra Prasad** served two full presidential terms.
- □ *D.C. Wadhwa (1987)*: re-promulgating ordinances = "fraud on the Constitution."

MUST-KNOW FACTS

1. President's oath → by **CJI**; VP's oath → by **President**.
2. Only **Dr. Rajendra Prasad** served two full presidential terms.
3. *D.C. Wadhwa (1987)*: re-promulgating ordinances = "fraud on the Constitution."

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Must-Know
Facts

HIGH

Foundation • □ Current link

GS-II Indian
Polity

NEWS TRIGGER

- □ **Current Art 200/201 position (20 Nov 2025 Article 143 opinion)**: courts cannot create rigid timelines or automatic deemed assent, but prolonged, unexplained and indefinite gubernatorial inaction remains open to limited judicial review and mandamus. □ □ For full powers, veto tables, ordinance limits & President-VP contrast → advanced/15_President-and-Vice-President.md.

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → [Current link](#)

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation



Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 17–18 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 greater than □ = from source book · □□ = inference / case law · □ = current affairs.	Dimension 4 greater than Companion: basic/President-and-Vice-President.md.

STATIC THEORY

- greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 17–18 (direct check of the local Sixth Revised Edition PDF).
- greater than □ = from source book · □□ = inference / case law · □ = current affairs.
- greater than *Companion: basic/President-and-Vice-President.md.*

MUST-KNOW FACTS

1. greater than = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Core
Foundation

HIGH

Advanced • PART A — THE PRESIDENT (Art 52–62, 72, 74)

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of PART A — THE PRESIDENT (Art 52–62, 72, 74).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → PART A — THE
PRESIDENT (Art 52–62, 72, 74)

HIGH

Advanced · Election (Art 54–55) □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Indirect** election by an **electoral college** = **elected** members of both Houses of Parliament + **elected** members of state legislative assemblies + **elected** members of **Delhi & Puducherry** assemblies (added by **70th Amdt 1992**). **Nominated members and MLCs do NOT vote**. □ System: **proportional representation by single transferable vote, secret ballot** → winner needs an **absolute majority (quota)**. □ Value of an MLA's vote uses **1971 census population** until relevant figures of the **first census taken after 2026 have been published** (84th Amdt 2001). Disputes → **Supreme Court** (final). □ Indirect election chosen because President is a **nominal executive** and direct election would be costly for a symbolic head.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Indirect election by an **electoral college** = **elected** members of both Houses of Parliament + **elected** members of state legislative assemblies + **elected** members of **Delhi & Puducherry** assemblies (added by **70th Amdt 1992**). **Nominated members and MLCs do NOT vote**. System: **proportional representation by single transferable vote, secret ballot** → winner needs an **absolute majority (quota)**. Value of an MLA's vote uses **1971 census population** until relevant figures of the **first census taken after 2026 have been published** (84th Amdt 2001). Disputes → **Supreme Court** (final). Indirect election chosen because President is a **nominal executive** and direct election would be costly for a symbolic head.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Election (Art
54–55) □

HIGH

Advanced · Qualifications, oath, conditions

GS-II Indian
Polity

INTRO & ORIGIN

□ Citizen of India · **35 years** · qualified for **Lok Sabha** · no office of profit. Nomination: **50 proposers + 50 seconders**, deposit **₹15,000** (forfeited if less than 1/6 votes). □ Oath administered by **CJI** (or senior-most SC judge). Immune from criminal proceedings during term; civil proceedings only after **2 months' notice**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Citizen of India · 35 years · qualified for **Lok Sabha** · no office of profit. Nomination: **50 proposers + 50 seconders**, deposit **₹15,000** (forfeited if less than 1/6 votes). Oath administered by **CJI** (or senior-most SC judge). Immune from criminal proceedings during term; civil proceedings only after **2 months' notice**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Qualifications,
oath, conditions

HIGH

Advanced · Term, impeachment, vacancy □

GS-II Indian
Polity

INTRO & ORIGIN

□ **5-year** term; resigns to **Vice-President**; eligible for **any number of re-elections** (US = max twice). □ **Impeachment (Art 61)** — only ground = **"violation of the Constitution"** (undefined). Charge by **1/4 members** of either House, **14 days'** notice, passed by **2/3 of total membership** of both Houses. □ **Nominated members CAN participate in impeachment** (though not in election); **state MLAs CANNOT** (though they vote in election). No President impeached so far. □ **Vacancy**: if term expires, outgoing President continues till successor takes charge (no interregnum, VP does not act). If death/resignation/removal → VP acts, election within **6 months**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. 5-year term; resigns to **Vice-President**; eligible for **any number of re-elections** (US = max twice). **Impeachment (Art 61)** — only ground = **"violation of the Constitution"** (undefined). Charge by **1/4 members** of either House, **14 days'** notice, passed by **2/3 of total membership** of both Houses. □ **Nominated members CAN participate in impeachment** (though not in election); **state MLAs CANNOT** (though they vote in election). No President impeached so far. **Vacancy**: if term expires, outgoing President continues till successor takes charge (no interregnum, VP does not act). If death/resignation/removal → VP acts, election within **6 months**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Term,
impeachment, vacancy □

HIGH

Advanced · Powers & functions □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Type	Highlights
□ Executive	All Union executive action in his name; appoints PM, ministers, AG, CAG, CEC & ECs, UPSC, Governors, Finance Commission
□ Legislative	Summon/prorogue Parliament, dissolve LS, joint sitting; nominates 12 RS members (art/science/literature/social service); assent to bills; ordinances
□ Financial	Money bills need his prior recommendation; lays Union Budget ; Contingency Fund advances; constitutes Finance Commission
□ Judicial	Appoints CJI/SC/HC judges; seeks SC advice (Art 143, not binding); pardon power (Art 72)
□ Diplomatic	Treaties/agreements in his name (subject to Parliament)
□ Military	Supreme Commander of defence forces; appoints service chiefs
□ Emergency	Art 352, 356/365, 360

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Powers &
 functions □

HIGH**Advanced · Powers & functions** □GS-II Indian
Polity**INTRO & ORIGIN**

greater than Note: **Anglo-Indian nomination (2 to LS)** lapsed via **104th Amdt (2020)**. □□

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Powers &
 functions □

HIGH**Advanced · Veto power (Art 111)** □□GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Veto	Meaning	Example
□ Absolute	Withholds assent, bill dies	Rajendra Prasad — PEPSU Appropriation Bill (1954); Venkataraman — MP Salary Bill (1991)
□ Suspensive	Returns bill; overridden by ordinary majority re-passage (US needs higher)	—
□ Pocket	Sits on bill indefinitely (no time limit)	Zail Singh — Indian Post Office (Amendment) Bill, 1986

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Veto power (Art 111) □□

HIGH

Advanced · Veto power (Art 111) □□

GS-II Indian
Polity

INTRO & ORIGIN

□ Three alternatives: assent · withhold · return (not money bill). India's President has **absolute, suspensive, pocket** vetoes — **NO qualified veto** (that's the US President).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ **No veto over a constitutional amendment bill — 24th Amdt (1971)** made assent **obligatory**. □ Over **state bills reserved by Governor** (Art 201): assent / withhold / direct return — but **NOT bound** to assent even if re-passed (state legislature cannot override); can also **pocket veto**.

MUST-KNOW FACTS

1. Three alternatives: assent · withhold · return (not money bill). India's President has **absolute, suspensive, pocket** vetoes — **NO qualified veto** (that's the US President).

2. **No veto over a constitutional amendment bill — 24th Amdt (1971)** made assent **obligatory**. Over **state bills reserved by Governor** (Art 201): assent / withhold / direct return — but **NOT bound** to assent even if re-passed (state legislature cannot override); can also **pocket veto**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Veto power (Art 111) □□

HIGH

Advanced · Ordinance-making power (Art 123) □

GS-II Indian
Polity

INTRO & ORIGIN

□ Most important legislative power; ordinances = temporary laws with the force of an Act. **Limits:** (1) only when a House is **not in session**; (2) only on subjects Parliament can legislate & **cannot abridge FRs**; (3) must be laid before Parliament, **ceases 6 weeks** after reassembly (max life ≈ **6 months + 6 weeks**); (4) **cannot amend the Constitution**. □ *Cooper case (1970)* — satisfaction justiciable on **mala fide**; □ *D.C. Wadhwa (1987)* — **re-promulgation** of ordinances is a "fraud on the Constitution."

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Most important legislative power; ordinances = temporary laws with the force of an Act. **Limits:** (1) only when a House is **not in session**; (2) only on subjects Parliament can legislate & **cannot abridge FRs**; (3) must be laid before Parliament, **ceases 6 weeks** after reassembly (max life ≈ **6 months + 6 weeks**); (4) **cannot amend the Constitution**. *Cooper case (1970)* — satisfaction justiciable on **mala fide**; *D.C. Wadhwa (1987)* — **re-promulgation** of ordinances is a "fraud on the Constitution."

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE →
Ordinance-making power (Art 123) □

HIGH

Advanced · Pardoning power (Art 72) □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Pardon, reprieve, respite, remission, commutation.** President can pardon **court-martial** sentences and **death sentences** — Governor (Art 161) **cannot** do either (but has concurrent power to suspend/remit/commute death). Exercised on **Cabinet's advice**; subject to judicial review only if arbitrary/mala fide.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Pardon, reprieve, respite, remission, commutation. President can pardon **court-martial** sentences and **death sentences** — Governor (Art 161) **cannot** do either (but has concurrent power to suspend/remit/commute death). Exercised on **Cabinet's advice**; subject to judicial review only if arbitrary/mala fide.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Pardoning
power (Art 72) □

HIGH

Advanced · Constitutional position (Art 53, 74, 75) □□

GS-II Indian
Polity

INTRO & ORIGIN

□ **Nominal executive** — Ambedkar: "head of the State but not of the Executive... symbol of the nation." □ **42nd Amdt (1976):** advice of CoM made **binding**. □ **44th Amdt (1978):** President can **return once** for reconsideration, but **reconsidered advice is binding**. (K.R. Narayanan used this over UP 1997 & Bihar 1998 President's Rule.) □ **Situational discretion** (no constitutional discretion): appointing a PM in a **hung Lok Sabha**; dismissing a CoM that can't prove confidence; dissolving LS when CoM has lost majority.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Nominal executive — Ambedkar: "head of the State but not of the Executive... symbol of the nation." **42nd Amdt (1976):** advice of CoM made **binding**. **44th Amdt (1978):** President can **return once** for reconsideration, but **reconsidered advice is binding**. (K.R. Narayanan used this over UP 1997 & Bihar 1998 President's Rule.) **Situational discretion** (no constitutional discretion): appointing a PM in a **hung Lok Sabha**; dismissing a CoM that can't prove confidence; dissolving LS when CoM has lost majority.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Constitutional
position (Art 53, 74, 75) □□

HIGH

Advanced • PART B — THE VICE-PRESIDENT (Art 63–71) □

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART B — THE VICE-PRESIDENT (Art 63–71) □.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → PART B — THE
VICE-PRESIDENT (Art 63–71) □

HIGH

Advanced • Election & qualifications

GS-II Indian Polity

INTRO & ORIGIN

□ Electoral college = **members of both Houses of Parliament ONLY** — includes **nominated members**, excludes **state MLAs** (Ambedkar: VP mainly presides over Rajya Sabha). Same PR-STV secret ballot. □ Qualifications: citizen • **35 years** • qualified for **Rajya Sabha** • no office of profit. Nomination: **20 proposers + 20 seconders**, deposit **₹15,000**. Oath administered by the **President**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Electoral college = **members of both Houses of Parliament ONLY** — includes **nominated members**, excludes **state MLAs** (Ambedkar: VP mainly presides over Rajya Sabha). Same PR-STV secret ballot. Qualifications: citizen • **35 years** • qualified for **Rajya Sabha** • no office of profit. Nomination: **20 proposers + 20 seconders**, deposit **₹15,000**. Oath administered by the **President**.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Election &
qualifications

HIGH

Advanced • Term, removal, functions

GS-II Indian Polity

INTRO & ORIGIN

□ **5-year** term; resigns to **President**. **Removal**: resolution passed by **effective majority** of **Rajya Sabha** + agreed by **Lok Sabha** (simple majority); **can only be initiated in Rajya Sabha**; 14 days' notice; **no ground required** (no formal impeachment). □ **Functions**: (1) **ex-officio Chairman of Rajya Sabha**; (2) **acts as President** on a vacancy for **max 6 months**. □ Unlike the **US VP**, the Indian VP does **NOT** become President for the unexpired term — only **acts** until a new President is elected. Called "**His Superfluous Highness**" by some scholars.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. 5-year term; resigns to **President**. **Removal**: resolution passed by **effective majority** of **Rajya Sabha** + agreed by **Lok Sabha** (simple majority); **can only be initiated in Rajya Sabha**; 14 days' notice; **no ground required** (no formal impeachment). **Functions**: (1) **ex-officio Chairman of Rajya Sabha**; (2) **acts as President** on a vacancy for **max 6 months**. Unlike the **US VP**, the Indian VP does **NOT** become President for the unexpired term — only **acts** until a new President is elected. Called "**His Superfluous Highness**" by some scholars.

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Term, removal,
functions

HIGH**Advanced · UPSC Traps**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: State MLAs vote in the VP election

CORRECT: **only MPs** vote for VP; MLAs vote for President.

WRONG: Nominated MPs vote in the presidential election

CORRECT: **no** (only elected); but they **can** vote in impeachment.

WRONG: Indian President has a qualified veto

CORRECT: he has **absolute/suspensive/pocket**; **qualified = US President**.

WRONG: President can veto a constitutional amendment bill

CORRECT: **must assent** (24th Amdt).

WRONG: Governor can pardon a death sentence

CORRECT: **only the President** can (Art 72 vs 161).

WRONG: VP is removed by impeachment

CORRECT: by an **RS effective-majority resolution + LS agreement**, no ground stated.

WRONG: VP succeeds as President for the full unexpired term

CORRECT: only **acts for max 6 months** (unlike US VP).

MAINS ANGLE**STUDY LINK**

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced • CA hooks

GS-II Indian
Polity

NEWS TRIGGER

□ □ **Articles 200/201**: the five-judge Article 143 opinion of **20 Nov 2025** held that courts cannot create rigid timelines or automatic deemed assent, while prolonged, unexplained and indefinite gubernatorial inaction remains open to limited judicial review. □ □ □ Debate over **President's/Governor's discretion**, mercy-petition delays, and **re-promulgation of ordinances** (D.C. Wadhwa doctrine) recur. □ **VP election 2022** — Jagdeep Dhankhar.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced • Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The President is a rubber stamp." Critically examine the situational discretion of the office. Ordinance-making and the D.C. Wadhwa doctrine — executive overreach vs legislative necessity. Governor/President assent to bills: should a constitutional time-limit be prescribed?

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Mains angles

HIGH

Advanced • Verified PYQ application

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2025 GS-II Q3 (10 marks, 150 words)**: "Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both the countries? What are 'preemptive pardons'?" Route: Art 72 and ministerial advice vs US Article II personal executive power -greater than Indian court-martial/death-sentence scope vs US federal-offence/impeachment limits -greater than mala fides/arbitrariness review -greater than pre-emptive pardon covers completed conduct before charge/conviction, not future offences.

STUDY LINK

President & Vice-President (Articles 52–73) —
ADVANCED / COMPLETE → Verified PYQ application

End of Register Notes — UPSC Agent / Copilot CLI